FILED

JUL 23 2026

RESOLUTION NO. 2026-28

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF ORANGE COVE, CALIFORNIA, SUBMITTING TO CITY VOTERS AT THE NEXT GENERAL ELECTION TO BE HELD NOVEMBER 3, 2026, A BALLOT MEASURE PROPOSING TO IMPOSE A SPECIAL TAX FOR POLICE SERVICES, RECREATION SERVICES, AND PARK MAINTENANCE IN THE CITY OF ORANGE COVE.

WHEREAS, Resolution No. 2026-28 amends Resolution 2026-12, the Orange Cove Police Department provides essential public safety services to the citizens of Orange Cove; and

WHEREAS, the City General Fund lacks funds to hire the police officers needed to maintain the necessary level for police protection in the City; and

WHEREAS, State law (including Government Code Section 53978 et seq.) authorizes a special tax for the purpose of providing police services; and

WHEREAS, the voters of the City of Orange Cove have previously approved a special parcel tax to help fund police and fire services codified by City Ordinance No. 396; and

WHEREAS, the ballot measure relating to Ordinance No. 396 to provide for the continued funding of police and fire services was rejected by voters in March 2024; and

WHEREAS, the special parcel tax relating to Ordinance No. 396 was sunset in November 2024;and

WHEREAS, the City provides recreation services and performs park maintenance for the benefit of the citizens of Orange Cove; and

WHEREAS, the City General Fund lacks funds to offer Recreation and Park Maintenance services at a level of service the City and its citizens require; and

WHEREAS, the City Council held a Council Meeting on April 22, 2026, at which the City Council considered a staff report, presentation, public testimony, and deliberated on the matter regarding submitting a ballot measure to the voters concerning the imposition of a special parcel tax for Police, Recreation, and Park Maintenance services; and

WHEREAS, the City Council has determined that a special parcel tax is necessary to generate the financial resources necessary for maintaining Police, Recreation, and Park Maintenance services as set forth above; and

WHEREAS, the City Council directed that a Citizen's Oversight Committee be formed to oversee the expenditures resulting from the special tax should it be approved.

NOW, THEREFORE, BE IT RESOLVED by the City Council ofthe City of Orange Cove as follows:

SECTION 1. The City Council submits to the voters of the City of Orange Cove at a General Municipal Election to be consolidated with the regularly scheduled November 3, 2026 Statewide General Election, a ballot measure for consideration of an ordinance for establishment of a Special Parcel Tax for Police, Recreation, and Park Maintenance Services as set forth in the ordinance attached as Exhibit "A" to this resolution. The City Council hereby calls and orders the election on November 3, 2026, to be consolidated with the regularly scheduled Statewide General Election and General Municipal election, for consideration of establishment of a Special Parcel Tax for Police, Recreation, and Park Maintenance Services.

SECTION 2. The question to be submitted to the voters with respect to the ballot measure shall be printed on the election ballot with the title and in the form set forth as follows:

City of Orange Cove Measure _	
To generate approximately $460,907 annually to fund police, recreation, and park maintenance services where 70% of the special tax proceeds shall be used for police services, shall the measure levying $125/unit for single family homes and $140/unit for multifamily, $800/acre for non-residential, and $400/acre for undeveloped parcels, known as Measure _, be adopted without expiration, with 3% annual increase, with all funds generated staying in the City of Orange Cove?	YES
	NO

The City Council hereby requests that the Fresno County Registrar of Voters/Elections Official assign the letter designation 'O' to this measure for purposes of identification on the ballot, if such letter is available; and in the event Letter 'O' is not available, the Registrar of Voters/Elections Official is requested to assign the next available letter designation in accordance with applicable law

SECTION 3. The following constitutes the synopsis of the measure to be voted on for purposes of meeting the publication requirements of Election Code Section 12111:

MEASURE TO BE VOTED ON APPROVAL OF ORDINANCE NO. 403 ADOPTING A SPECIAL TAX FOR POLICE, RECREATION, AND PARK MAINTENANCE SERVICES AS AUTHORIZED IN GOVERNMENT CODE SECTIONS 53978 AND 50077.

Ordinance No. 403 shall be added to the Orange Cove Municipal Code Chapter 3.34 establishing a special parcel tax. Single family residential will be taxed a rate of $125 per

dwelling unit; multifamily residential will be taxed a rate of $140 per dwelling unit; non- residential parcels will be taxed a rate of $800 per acre; and undeveloped parcels will be taxed a rate of $400 per acre. Each rate will be inflated annually by 3%. Notice is hereby given that the following measure is to be voted on at the General Municipal Election to be held in the City of Orange Cove, on Tuesday, the 3rd day of November 2026.

SECTION 4. The full text of the ordinance submitted to the voters is attached as Exhibit A. The full text of Ordinance No. 403 is not required to be printed in the Sample Ballot and Voters Pamphlet. However, the full text of the measure shall be made available at the Office of the Fresno County Clerk/Registrar of Voters and the Office of the Orange Cove City Clerk.

SECTION 5. Passage of this measure requires a two-thirds majority of votes.

SECTION 6. Pursuant to Elections Code sections 10401 and 10403, the Board of Supervisors of the County of Fresno is hereby requested to consent and agree to the consolidation of the election for the Special Parcel Tax for Police, Recreation, and Park Maintenance Services with the General Municipal Election and Statewide General Election to be held on November 3, 2026.

SECTION 7. The Fresno County Registrar of Voters Office is hereby authorized to canvass the returns of the election for the Special Parcel Tax for Police, Recreation, and Park Maintenance Service. The election shall be held in all respects as if there were only one election, and only one form of ballot shall be used.

SECTION 8. The Board of Supervisors of the County of Fresno is hereby requested to issue instructions to the Fresno County Registrar of Voters Office to take any and all steps necessary for the holding of the consolidated election.

SECTION 9. The City Council of the City of Orange Cove recognizes that additional costs will be incurred by the County of Fresno by reason of this consolidation and hereby agrees to reimburse the County for these costs.

SECTION 10. In all particulars not recited in this resolution, the election shall be held and conducted as provided by law for holding municipal elections. The consolidated election for the Special Parcel Tax for Police, Recreation, and Park Maintenance Services shall be held and conducted in the manner prescribed by Elections Code 10418 and 10403(a)(3).

SECTION 11. Arguments in favor or against the proposed measure are permissible and shall be filed with the Fresno County Clerk/Registrar in accordance with Elections Code Section 9282. The Mayor is authorized to prepare and file a written argument in favor of the proposed measure not to exceed 300 words on behalf of the City Council.

SECTION 12. The Fresno County Clerk/Registrar of Voters shall give the appropriate notices for the election in the Fresno Bee and shall conduct the election pursuant to provisions of state law.

SECTION 13. The City Attorney shall prepare an impartial analysis of the measure in accordance with Elections Code Section 9280 and file it with the Fresno County

Clerk/Registrar of Voters.

SECTION 14. The City Clerk shall file a certified copy of this resolution with the Fresno County Clerk/Registrar of Voters as required by applicable law.

SECTION 15. The City Clerk or City Attorney are hereby authorized to make typographical or clerical corrections to this resolution as required to ensure that the Measure is placed on the ballot.

CLERK'S CERTIFICATION

I, Cynthia Cisneros, City Clerk for the City of Orange Cove, hereby certify that a public hearing was held and that the foregoing Resolution No. 2026-12 was duly approved at a regular meeting of the Orange Cove City Council on July 22, 2026, by the following vote:

PASSED, APPROVED AND ADOPTED this 22nd day of July 2026, at a regular meeting of the Orange Cove City Council by the following vote:

AYES:	4 COUNCIL MEMBERS: Ortiz, Rodriguez, Del Bosque, Garcia
NOES:	0 COUNCIL MEMBERS: None
ABSTAIN:	0 COUNCIL MEMBERS: None
ABSENT:	0 COUNCIL MEMBERS: None

CITY OF ORANGE COVE INCORPORATED JANUARY 20 1948

Approved:

Gilbert Garcia
Mayor

Attest:

Cynthia Cisneros
City Clerk